



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

Minutes of the Meeting - Westhampton Selectboard

January 31, 2022, 6 PM

The Westhampton Selectboard scheduled a regular meeting on Monday, January 31, 2022, at 6 PM.

Pursuant to Chapter 20 of the Acts of 2021, the meeting was held as a "hybrid" (in person and remote access) meeting. Some members of the board and the public attended the meeting via "Zoom" conferencing. Meeting ID Code: 8704 390 0582. In-person attendance by the public was permitted. The meeting was audio/video recorded for purposes of minutes only.

Call to Order

Meeting was called to order at 6:05 PM. (Recording: ~ 7 Minutes)

Present: Phil Dowling, Maureen Dempsey, Teri Anderson (via Zoom)

Present in person: Doug Finn (Town of Westhampton), Superintendent Bill Jablonski (Westhampton Highway Department), Chief David White (Westhampton PD), Roberta Armenti (Westhampton Board of Health), Susan Bronstein (Westhampton Planning Board)

Present via Zoom: Andrea Pichette, Anita Goddard, Art Pichette, Barbara Page (B Page), Chris Wayne (Chris), Dave Antosz, Dave Antosz, David White, David White, Janice Tracy, Marilyn R Witherell (marilynwithere), Mary Lou and Gerald Burgess (marylou), Mary Montague, Matt and Piper Murphy (Piper), Pat Miller (Robert Miller), Philip Dowling, Robert Miller, Roberta Armenti, Rosehill Family, Sarah Kalmakis, Scott Johndrow W'ton SC (Scott johndrow), Shelby Macri (shelbymacri), Steven Gagne, Sue O'Rourke, Susan Y Harris, Tad Weiss, Trent Levakis

Scheduled Business

6:00 PM -- PUBLIC HEARING AND DISCUSSION: ARPA FUNDS

The Selectboard conducted an informal public hearing to accept and consider comments relative to the determination and prioritization of appropriate and beneficial uses for funding received through the American Recovery Program Act ("ARPA"). Public comment was considerable and broad-ranging. Ideas and details were included in a spreadsheet, which was made available to the public through the Town's website, and was presented and reviewed on-screen throughout the hearing. General ideas:

Post October 29 CARES expenses	All purchases debited from CARES fund since October 29 must be covered instead by ARPA funds. Expenditures already approved and completed. \$26,776
Design Services for Public Safety Complex 2nd Floor	Design and engineering for second floor of public Safety Complex; Already Approved and completed. \$36,000

PSC - Cost Overruns	Request would offset the increased costs to the project due to delays, increased costs of materials, other factors that are directly tied to Covid-19 and the supply-chain disruption. This is strongly recommended by the PSC Building Committee. Estimated: \$120,000
WATER FILTRATION for WES	Replacement of certain water fixtures in school, such as some sinks, water fountains, etc., with filtered, hands-free appliances. Estimated: \$8,000
GENERATOR for WEST WELL	Purchase and installation of a generator specifically to operate the well and water equipment. May include fuel tank, shed, etc. Estimated: t/b/d
ELEVATOR for PSC Building	Purchase and installation of elevator for Public Safety Complex, currently under construction. Funds would not build out second floor, but would significantly reduce the cost to build out later. Estimate: \$130,000.
Food pantry funding	Funding for the Westhampton Food Pantry for the next year; estimate is amount requested. Estimated: \$10,000.
Supplemental Pay	Pay for employees in order to attend necessary training and workshops. Varies depending on individual rate (est. \$37.50-\$75 per person); estimate assumes 16 employees, 12 hours per employee, average rate of \$40 / hour. Estimate: \$7,680.
Transfer Station Compactor	Current compactor is failing with parts not able to be secured. Proposed repairs are roughly \$5,000, and electrical connections are improvised. Replacement unit is essential for continued operation of transfer station. Estimate: t/b/d
Police Cruiser	A purchase is permissible under ARPA "Final Rule"; price is estimated. Estimate: \$65,000.
Highway Truck	Purchase of highway truck - delayed due to Covid-19; cost increase of at least \$20,000 due to supply chain issues. Estimate: \$75,000.
MONITORED FIRE ALARM SYSTEM for TOWN HALL and ANNEX	Replacement of Fire Alarm detection / monitoring system in the Annex. Current system is acting erratically and may be failing. Estimate: t/b/d
COVID19 TESTS / N95 MASKS	Purchase of Covid-19 tests and/or masks for public distribution. Estimate: \$6,500.
TRANSPORTATION SYSTEM FOR SENIORS	Transportation options (a van and driver?) for Westhampton residents in order to provide "last mile" link between residences and public transit lines. Estimate includes cost of vehicle (\$42,000) - plus fuel / insurance (\$6,000), plus stipend (12 months \$1,000 / month) Estimate: \$60,000.

PURCHASE OF FIRE / POLICE RADIOS	A purchase is permissible under ARPA "Final Rule"; price is estimated. Estimate: t/b/d
WATER WELL FILTRATION	A grant program to allow for funding of well filtration / remediation in case of contamination from PFAS or other contaminants; Estimated Cost is for ten single-filter appliances (one faucet) at \$600 each. Whole house RO filters range in price between \$12,000-\$18,000. Estimate: \$7,500.
OPEN SPACE INFRASTRUCTURE	Feasability study to explore options relative to establishing and/or developing open-space and other recreational infrastructure and resources. Estimate: t/b/d
BROADBAND for ELEMENTARY SCHOOL	Create, Develop or Reinforce structures, equipment and other resources for Broadband for the WES, including computers and networking equipment. Estimate: \$12,600.
ADDITIONAL FUNDING for SCHOOL CAFETERIA WORKERS?	No further description. No estimate given. Presumed to be allowed as 'premium pay for essential workers'.
BEHAVIORAL HEALTH RESOURCES for STUDENTS	Funding for behavioral health services / crisis detection and prevention for youth; support for care-givers. Estimate: t/b/d
POLICE CERTIFICATION / TESTING	Necessary testing / training or certification for new or current officers From the Chief: "...just to hire one that is already trained, \$2000 uniforms, Approx. \$600 Psych Assessment, \$750 Physical Test. If hire outside to conduct backgrounds, this will get expensive. If we do them internally, someone will need to be sent to a school to learn how to conduct the investigation. To hire someone that is not trained is not possible. The part time academy access is no longer. The only option is to send to the full time academy or equivalent. This is expensive and a trained officer will be hard to keep in Westhampton when faced with the options to move to a larger, better paying dept. This is huge obstacle for the future. If we hire someone that is "Bridge Academy" ready: 200 hrs of in- person Defensive Tactics, EVOC Driving, Firearms Training, 80 hrs online." Estimate: \$12,000.
FUNDING for LIBRARY HOTSPOTS	The library started a mobile hotspot lending program last year. It is funded by an Emergency Connectivity grant that was secured by the Mass Board of Library

Commissioners.

The grant funding expires at the end of September 2022, so if the library wants to continue to offer hotspots to our patrons we need to secure alternative funding by October 2022. Currently we have 5 T-Mobile hotspots. Based on demand, I propose funding at least 3 hotspots after the grant expires. Below are some cost scenarios. My preference would be for the last option as adding an AT&T hotspot would provide better coverage for some (although they cost a bit more per month).

T-Mobile hotspot - 31.50 per month

AT&T hotspot - 37.99 per month plus one-time cost for hotspot at \$0.99

3 T-Mobile hotspots at \$1,134.00/year

2 T-Mobile hotspots at \$756/year

2 T-Mobile hotspots plus 1 AT&T hotspot at \$1,212.87/year

Estimate: \$3,600 - \$6,000 (depending on timeline)

**BROADBAND FOR
THE TOWN**

Improvement to existing cable network based broadband, or replacement with a new system. No estimate given.

**TOTAL FOR ALL
REQUESTS**

\$552,056.00

**TOTAL FUNDING
AVAILABLE**

\$478,000.00

The updates and changes were made available for public review on the Town's website.

Mr. Dowling noted that the funding process was a multi-year process. The Selectboard would be continuing to review requests, and make decisions regarding funding of any given request on an ongoing basis.

At 6:55 PM, the board recessed.

The board resumed at 7:01 PM.

7:00 PM - POLE HEARING – EVERSOURCE

In accordance with Section 22 of Chapter 166 of the General Law, the Selectboard of the Town of Westhampton conducted a public hearing to receive public comment on a request of Anthony Gentile, Eversource Energy, on behalf of NSTAR / EVERSOURCE / VERIZON NEW ENGLAND for permission **to install one new solely owned pole, to be located approximately 27 feet North of the centerline of Main Road, and approximately 121 feet Southwest of existing pole 18/40.** The purpose is to provide power to a new home being constructed at 193 Main Road.

No one was present to speak to the application.

The request was reviewed. No locus map was provided. The pole would provide power to a new home. Mr. Bill Jablonski noted that the location posed no problems, and confirmed that the pole would be necessary to provide service to the new home being constructed.

After brief deliberation, it was MOVED by Dowling, SECONDED by Dempsey,

To close the pole hearing, approve the request, subject to the town's standard conditions for new telephone poles.

VOTED: ANDERSON: YES; DEMPSEY: YES; DOWLING: YES.

OTHER BUSINESS

Appointment - Appointment of Sergeant

Chief White requested that Acting Sergeant Fish be appointed to full Sergeant, all posting requirements having been met, Sergeant Fish having been the only qualified applicant to apply.

It was MOVED by Dowling, SECONDED by Dempsey

To Appoint Acting Sergeant Jeffrey Fish to Sergeant, effective immediately.

VOTED: ANDERSON: YES; DEMPSEY: YES; DOWLING: YES.

Chief White noted that the updated cost for a replacement cruiser was still being researched, but that the proposed \$65,000 price still seemed to be a reliable figure.

Chief White noted that an upgrade of any vehicle to a 'hybrid' model would be about \$6,000-\$7,000 'upcharge'. Mr. Dowling encouraged the Chief to pursue a hybrid option, as it would like be a money-saver for the town.

Chief White also encouraged Selectboard members to review the recent presentation on The Impacts of Police Reform on Small Towns.

Department and Committee Updates

Highway (Bill Jablonski)

Mr. Jablonski noted two smaller storm events; ongoing work included cleaning catch basins, maintenance on fire truck vehicles; ongoing work to the highway break room; repair to a highway truck (broken spring); a new starter installed on Fire Chief's vehicle.

Highway Crew Member Mr. Norris has completed all training and licensing requirement.

Mr. Jablonski requested approval and signature on the Chapter 90 reimbursement request. Agreed by consensus. The document was reviewed.

It was MOVED by Dowling, SECONDED by Dempsey

To approve and to endorse the request for reimbursement of \$18,116.61 (Chapter 90).

VOTED: ANDERSON: YES; DEMPSEY: YES; DOWLING: YES.

Mr. Jablonski also requested that the Selectboard vote to allow overspending of the Snow

and Ice Budget¹. The board took no action, but will take up the matter at the next meeting.

It was MOVED by Dowling, SECONDED by Dempsey

To permit overspending of the Snow and Ice Budget in accordance with Chapter 44, Section 31D.

VOTED: ANDERSON: YES; DEMPSEY: YES; DOWLING: YES.

Mr. Dowling expressed the appreciation of the Selectboard for the work that the Highway Department was doing to keep the roads passable and in very good shape.

Health (Robby Armenti)

Ms. Armenti offered thanks to Mr. Finn for assistance with the website; Ms. Armenti also thanked Chief White, and Board of Health Member Tom Martin for their assistance with a wellness check.

Ms. Armenti noted nine persons in Westhampton with active cases of Covid-19, and one hospitalization.

Ms. Armenti reported that the Foothills Health District would not be seeking funds or making purchases for at-home test kits for general distribution, as testing was still widely available at no cost from a number of local institutions, and verified at-home tests could not be secured from reliable sources. Ms. Armenti noted that the FHD would be looking for reliable sources of verified (certified) facemasks for general public distribution.

Fire Chief Antosz noted that there were some extra KN95 masks at the highway garage. There was some discussion related to securing legitimate product from legitimate sources.

There was some concern expressed about taking in-stock product for public distribution. Chief Antosz noted that he would preserve a stock for town staff.

It was confirmed that the FHD decided not to purchase at-home tests, after tests could not be secured. Mr. Finn noted that the town had ordered 70 test kits for town staff use. Ms. Armenti noted that the town's order is what prompted the FHD to stop pursuing its own purchases.

Public Safety Building (Phil Dowling)

Mr. Dowling noted that construction of the public safety building was ongoing, with trusses and other component being delivered to the site on a daily basis. Gable-end trusses were installed, and work was progressing.

MVP (Teri Anderson)

Ms. Anderson noted that the open-space survey was close to being published. The Master Plan survey would be following. The first public information session would be held in late winter (early march) on a date to be determined. All information will be posted on the Town's website.

FY2023 Selectboard Budgets

The Selectboard reviewed a number of budgets under its purview.

Selectboard Expense: Mr. Finn reviewed the numbers on the budget, and the expectations for increased costs for the coming year. Ms. Anderson requested more

¹ Refer to: Mass. General Law, Chapter 44, Sec 31D

information about “Medicaid Fees” (line item on Expense budget). Mr. Finn noted that he would find out and report back. Generally, the board appropriated with

Information Technology Support: Mr. Finn reviewed the budget. It was noted that certain categories (Internet Service, Website Hosting, Copier / Printer maintenance) were moved from the Town Hall Maintenance budget to IT, resulting in an increase to the one, but a corresponding decrease to the other.

Document Management Systems: Mr. Finn reviewed the numbers. There was brief discussion relative to the LaserFiche system and its use at the Town Hall.

Town Offices Expenses: Mr. Finn reviewed the budget. Mr. Dowling offered to review utilities costs with Mr. Finn to ensure that the request was in line with expected costs.

Town Hall Annex Repairs: Mr. Finn noted that the repairs budget was trimmed back to an essential repair budget, and that specific repair projects by right should be considered as appropriations separate from the operating budget. Mr. Dowling noted that addressing moisture issues in the basement should be addressed soon.

Town Hall Roof: Mr. Finn noted that the roof project was complete, and would not be refunded.

Great Hall Paint: Mr. Dowling noted that, while the current amount did not seem to have been used, there should have been expenses paid from that account; Mr. Finn agreed to review and pursue the matter; no new appropriation to be made in FY23.

Legal Counsel: Mr. Dowling asked for a YTD expense; \$3,720.

Consulting Planner: Mr. Finn recommended no funding, as the expected work would be conducted by the Administrative Assistant. There was some discussion relative to the workload, the amount of hours necessary, and the splitting of the Administrative Assistant’s time. The expectation is that the consulting planner would not be simply providing administrative support, but instead would advise the Town’s Zoning Appeals and Planning Boards, in order to ensure that the requirements of the General Law and the Zoning Bylaw were met, proper deliberative procedures were being followed, and decisions properly made and recorded.

Mr. Finn agreed with the concerns raised, and agreed with the intent behind the consultant planner position. Mr. Finn also suggested that comprehensive administrative support was essential to the goal of making legally defensible decisions.

Administrative Assistant

There was some discussion relative to the salary, and hours for the position. Mr. Finn requested an increase to 40 hours weekly, but did not request an increase in hourly rate.

It was noted that FY2022 budget allows for a 30-hour week; a total increase to the line would be roughly \$14,000.

Mr. Dowling noted that the Administrative Assistant’s duties should include grant-writing as part of the required functions. Mr. Dowling asked whether the additional hours would allow for grant research and writing. Mr. Finn noted that grant writing would be one of his goals, and expected that the additional time would be useful to that goal.

Mr. Dowling noted his support for moving the position to full time. Ms. Dempsey agreed. Ms. Anderson agreed conditionally, noting that other administrative duties

(such as human resource managements) may become part of the position.

Mr. Dowling asked about moving from an Administrative Assistant to a Town Administrator. Ms. Anderson noted that moving to Town Administrator makes sense from a certain point of view, but would require a comprehensive review of the salary and job responsibilities, including a comparison to other communities' job descriptions and salary ranges. Ms. Anderson noted that the DOR "financial team" report has not been returned, and should be taken into consideration.

Mr. Dowling noted that the interviews with DOR were complete, but no final report had yet been returned. Mr. Dowling noted that he supported the move to 40 hours per week; Ms. Dempsey concurred.

COA Salary

Ms. Anderson asked whether current data existed that supported the request for the increase; noting that older data supported the previous salary levels; Mr. Finn noted that no supporting data was included. Mr. Finn suggested that he could research the matter; also noting that the Finance Committee was reviewing the budget. No action taken.

Veterans Agent Stipend

Mr. Finn noted that the requested stipend would be adjusted by the COLA; Mr. Finn noted that Mr. Joe Henning reported that, at times, his work exceeded the time suggested by the stipend level. Mr. Finn noted that to 'buy' services from one of the central offices in the region would likely prove to be more expensive.

Ms. Dempsey noted that the fee paid was meant to be a stipend, and that her expectation is that it might increase on an annual basis with COLA.

Mr. Finn agreed to get more information and report back.

COLA

The board considered making an adjustment to salaries by implementing a Cost of Living Adjustment. There was discussion as to past practice, consideration as to what other towns are doing, and whether circumstances in the current year warrant a change to past practice.

There was some discussion related to the data used, and the impact of using a three-year rolling average.

Mr. Dowling suggested a COLA of 3%. Ms. Anderson concurred.

There was some discussion related to what data other towns use to implement a COLA.

Mr. Dowling noted that past salary levels have often been based on what the market might bear; however, the town should consider the potential need to replace an employee, and what a fair-market salary should be.

A spreadsheet of past COLA levels, based on CPI-W numbers, was reviewed.

Ms. Anderson agreed that 3% seemed like a good starting point.

Mr. Dowling noted that each 1% of COLA adjustment represents a \$4,000 increase to the overall budget.

There was some question relative to the impact of a COLA on library pay rates.

Discussion– Vocational School Transportation

Mr. Finn noted that the Town was in receipt of a request from John F. Sears, Chair of the Vocational Education Advisory Committee (Serving: Charlemont, Hawley, Plainfield, and Ashfield) for support to address inequity in Vocational School District transportation reimbursement.

Draft language, and the request was reviewed.

It was MOVED by Dowling, SECONDED by Dempsey

To draft and send a letter in support of equitable vocational school district transportation reimbursement to state representatives.

VOTED:

ANDERSON: YES; DEMPSEY: YES; DOWLING: YES. (8:34 PM)

Old Business - Conservation Commission Appointments

Mr. Dowling noted that the Conservation Commission had not yet formally made a recommendation, and tabled the matter to the next regular meeting.

Review / Approve Minutes of January 17, 2022

The minutes were submitted late, and were still pending review. Ms. Dempsey noted that a second was not noted on the “acting sergeant” vote. Mr. Finn noted that he would make the correction and distribute the amended copy.

Review of warrants

Payroll and expense warrants were reviewed.

It was MOVED by Dowling, SECONDED by Dempsey

To approve the expense warrant as presented.

VOTED:

ANDERSON: YES; DEMPSEY: YES; DOWLING: YES. (3, 0, 0) (8:36 PM)

It was MOVED by Dowling, SECONDED by Dempsey

To approve the expense warrant as presented.

VOTED:

ANDERSON: YES; DEMPSEY: ABSTAIN; DOWLING: YES. (2, 0, 1) (8:37 PM)

Other items not reasonably anticipated at time of posting

Mr. Finn noted that a five-year contract (MOU) was presented, which would continue the current agreement for police dispatch services with the Town for the next five years, including a option to extend for an additional five years.

It was MOVED by Anderson, SECONDED by Dempsey

To approve and sign the MOU as requested.

VOTED:

ANDERSON: YES; DEMPSEY: ABSTAIN; DOWLING: YES. (2, 0, 1) (8:38 PM)

Mr. Finn noted that Mr. Ed Fisher had requested renewal of his business license (“E & J

Archery”).

It was MOVED by Anderson, SECONDED by Dempsey

To approve the license as requested.

VOTED:

ANDERSON: YES; DEMPSEY: ABSTAIN; DOWLING: YES. (2, 0, 1) (8:38 PM)

The board reviewed a draft letter of appreciation to be sent to Sergeant Fisher on the occasion of his retirement.

There was brief discussion related to funding received by Franklin Council of Governments in relation to helping towns cover the costs and burdens of the Police Reform Law.

Set next regular meeting date / time

Mr. Dowling noted that the next meeting would be on Monday, February 14, 2022, 7 PM.

Mr. Dowling asked that a discussion about COLA be added to the next regular meeting, as well as general discussion related to ARPA funding requests, most notably the request for funding for the Westhampton Food Pantry, the Public Safety Building, and other critical immediate needs.

Mr. Dowling asked whether the \$27,000 for CARES expenses overages should be immediately voted.

It was MOVED by Dowling SECONDED by Dempsey

To approve up to \$27,000 for outstanding CARES Act purchases.

VOTED:

ANDERSON: YES; DEMPSEY: YES; DOWLING: YES. (3, 0, 0) (8:45 PM)

It was noted that the second-floor design costs for the public safety complex had already been approved by a previous vote. Mr. Finn will confirm.

Adjourn

There being no further business, it was MOVED by Anderson, SECONDED by Dempsey

To Adjourn.

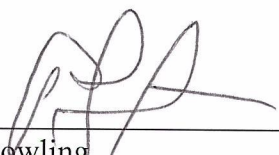
WITHOUT OBJECTION

Adjourned at 8:51 PM.

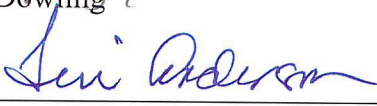
Respectfully submitted,

Douglas C. Finn.

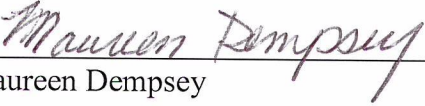
APPROVED by a vote of the Westhampton Selectboard, on February 14, 2022.



Phil Dowling



Teri Anderson



Maureen Dempsey